

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

SAMSUNG ELECTRONICS AMERICA, INC.,

Complainant,

v.

COSCO SHIPPING LINES CO. LTD.

Respondent and Third-Party Complainant,

v.

SAMSUNG ELECTRONICS COMPANY, LTD., SAMSUNG SDS GLOBAL SCL ASIA
PACIFIC PTE LTD, AND SAMSUNG ELECTRONICS LOGITECH COMPANY, LIMITED

Third-Party Respondents.

NON-PARTY SAMSUNG SDS AMERICA, INC.'S MOTION TO QUASH

HOHENSTEIN & PARKINSON, LLP
James H. Hohenstein
Sheryl K. Parkinson
385 South End Avenue, #5K
New York, NY 10280
Telephone: (917) 873-2528
jim.hohenstein@hplawnyc.com
sheryl.parkinson@hplawnyc.com

Counsel to Samsung SDS America, Inc.

TABLE OF CONTENTS

	Page
BACKGROUND	1
LEGAL STANDARD.....	1
ARGUMENT.....	3
I. The Subpoena is overbroad, vague, and unduly burdensome.	3
II. The Subpoena is duplicative of information already in the possession or control of the Parties.....	5
CONCLUSION.....	7

TABLE OF AUTHORITIES

	Page(s)
Cases	
<i>American Fed. of Musicians of the United States and Canada v. Skodam Films, LLC</i> , 313 F.R.D. 39 (N.D. Tex. 2015)	2
<i>Amini Innovation Corp. v. McFerran Home Furnishings, Inc.</i> , 300 F.R.D. 406 (C.D. Cal. 2014)	3
<i>Cusumano v. Microsoft Corp., Inc.</i> , 162 F.3d 708 (1 st Cir. 1998)	5
<i>Diamond Serv. Mgmt. Co. v. Knobbe, Martens, Olson & Bear, LLP</i> , 339 F.R.D. 334 (D.D.C. 2021)	5, 6
<i>Laker Airways Ltd. v. Pan American World Airways</i> , 607 F. Supp. 324 (S.D.N.Y. 1985)	6
<i>In re Denture Cream Prod. Liab. Lit.</i> , 292 F.R.D. 120 (D.D.C. 2013)	2
<i>In re Non-Party Subpoena to Center for Study of Social Policy</i> , 659 F. Supp. 3d 54 (D.D.C. 2023)	2
<i>In re Subpoena to Jeffrey Goldberg</i> , 693 F. Supp. 2d 81 (D.D.C. 2010)	6
<i>Millennium TGA, Inc. v. Comcast Cable Comm., LLC</i> , 286 F.R.D. 8 (D.D.C. 2012)	2
<i>Peloton Interactive, Inc. v. Flexport Int’l LLC</i> , FMC Dkt. 24-19, 2025 WL 1424174 (ALJ May 9, 2025)	6
<i>Phillipps & Cohen, LLP v. Thorpe</i> , 300 F.R.D. 16 (D.D.C. 2013)	2
<i>Power Integrations, Inc. v. Fairchild Semiconductor Int’l, Inc.</i> , 233 F.R.D. 143 (D. Del. 2005)	5
<i>Rocky Mountain Med. Mgmt., LLC v. LHC Hospital Group, Inc.</i> , No. 4:13-cv-00064-EJL, 2013 WL 6446704 (D. Idaho Dec. 9, 2013)	3
<i>Watts v. Sec. Exchange Comm.</i> , 482 F. 3d 501 (D.C. Cir. 2007)	6

<i>Wiwa v. Royal Dutch Petroleum Co.</i> , 392 F.3d 812 (5 th Cir. 2004)	2
--	---

Statutes, Rules and Regulations

Shipping Act of 1984	1
Fed. R. Civ. P. 26	3
Fed. R. Civ. P. 26(c)	2
Fed. R. Civ. P. 45(d)(3)	2
46 C.F.R. § 502.12	2
46 C.F.R. § 502.132(a)	1, 2
46 C.F.R. § 502.141(j)	2, 7
46 C.F.R. § 502.146(c)	1

Treaties

Hague Evidence Convention on the Taking of Evidence Abroad in Civil and Commercial Matters, March 18, 1970, 23 U.S.T. 2555, T.I.A.S. No. 7444	5
--	---

Samsung SDS America, Inc. (“SDSA”) hereby moves to quash the subpoena (“Subpoena”) served by COSCO Shipping Lines Co. Ltd. (“COSCO”) on October 1, 2025.¹ In support of this motion, SDSA states the following:

BACKGROUND

The underlying dispute in this matter stems from a complaint filed by Samsung Electronics America, Inc. (“SEA”) against COSCO alleging violations of the Shipping Act of 1984 (Doc. No. 26: Amended Complaint). COSCO has, in turn, filed a counterclaim against SEA (Doc. No. 30) and a Third-Party Complaint against Samsung Electronics Co., Ltd. (“SEC”), Samsung SDS Asia Pacific Pte Ltd. (“SDS Asia”), and Samsung Electronics Logitech Co., Ltd. (“Logitech”)(Doc. No. 31).

On October 1, 2025, SDSA, a separate corporate entity from the Complainant and Third-Party Respondents and a non-party to this matter, was served with a Subpoena initiated by COSCO seeking the production of numerous identified and unidentified documents and communications (defined in the broadest possible terms, *see* Exhibit A, Subpoena Definitions ¶¶ 11-12, at 2-4) having anything to do with identified and unidentified alleged service contracts since January 1, 2020.

LEGAL STANDARD

Under Commission Rules, nonparties are subject to subpoena. 46 C.F.R. § 502.146(c). The Commission Rules also provide for motions to quash such subpoenas:

Except when issued at a hearing, or in connection with taking a deposition, within ten (10) days after service of a subpoena for attendance of a witness or a subpoena for production of evidence, but in any event at or before the time specified in the subpoena for compliance therewith, the person to whom the subpoena is directed

¹ For ease of reference a copy of the COSCO subpoena served on SDSA is attached hereto as Exhibit A.

may, by motion with notice to the party requesting the subpoena, petition the presiding officer to quash or modify the subpoena.

See 46 C.F.R. § 502.132(a). SDSA's motion is timely filed.

The Commission Rules do not, however, provide criteria for determining whether or not to quash.² In the absence of a Commission Rule, the Federal Rules of Civil Procedure will generally be followed. 46 C.F.R. § 502.12.

Under Fed. R. Civ. P. 45(d)(3) a non-party, just as a party, may move to quash a subpoena. “On timely motion, the court...must quash or modify a subpoena that...(iii) requires disclosure of privileged or other protected matter...or (iv) subjects a person to undue burden.” *Id.* “[C]ourts have ‘the discretion to limit discovery to prevent undue [burden] to third parties, even if the discovery [sought] is within the permissible scope of the [Rules.]’” *In re Non-Party Subpoena to Center for Study of Social Policy*, 659 F. Supp. 3d 54, 58 (D.D.C. 2023)(quoting *Phillipps & Cohen, LLP v. Thorpe*, 300 F.R.D. 16, 18 (D.D.C. 2013)(quoting *In re Denture Cream Prod. Liab. Lit.*, 292 F.R.D. 120, 123-24 (D.D.C. 2013)(quoting *Millennium TGA, Inc. v. Comcast Cable Comm., LLC*, 286 F.R.D. 8, 11 (D.D.C. 2012))))(alterations in original). Among the factors to be considered in determining whether compliance will present an undue burden are relevance, the need of the requesting party for the documents, the breadth of the information requested, the time period covered, the particularity with which the information is described, and the burden imposed. *American Fed. of Musicians of the United States and Canada v. Skodam Films, LLC*, 313 F.R.D. 39, 44 (N.D. Tex. 2015)(citing *Wiwa v. Royal Dutch Petroleum Co.*, 392 F.3d 812, 818 (5th Cir. 2004)).

² Although under Rule 502.141(j) “The Commission or presiding officer may, for good cause, issue an order to protect a party from annoyance, embarrassment, oppression or undue burden or expense...” 46 C.F.R. § 502.141(j). *See also* Fed. R. Civ. P. 26(c).

While SDSA does not dispute that some of the information requested may, in the abstract, relate to issues in this matter, the remaining Rule 26 factors clearly show the COSCO's Subpoena is impermissibly overbroad, unduly burdensome, and disproportionate to the needs of the case.

Federal courts are particularly reluctant to compel discovery from a non-party where the requesting party can obtain the same information from a party. As the Central District of California has explained, "[a] court may prohibit a party from obtaining discovery from a non-party if that same information is available from another party to the litigation." *Amini Innovation Corp. v. McFerran Home Furnishings, Inc.*, 300 F.R.D. 406, 410 (C.D. Cal. 2014)(quoting *Rocky Mountain Med. Mgmt., LLC v. LHC Hospital Group, Inc.*, No. 4:13-cv-00064-EJL, 2013 WL 6446704 at *4 (D. Idaho Dec. 9, 2013)).

Here, the information COSCO seeks—particularly regarding contractual considerations—should already and must be within COSCO's possession, custody, or control as a co-signatory to the very contracts at issue. Or to the extent any such information resides elsewhere, it can be obtained directly from SDS Asia, who is already a party to this litigation as a result of COSCO's Third-Party Complaint. There is simply no justification for burdening a non-party, SDSA, with an expansive and intrusive Subpoena when the same materials are readily accessible from parties already before the tribunal. Accordingly, this Subpoena should be quashed in its entirety.

ARGUMENT

I. The Subpoena is overbroad, vague, and unduly burdensome.

Of the factors listed in *American Federation*, above, some of the information sought by the COSCO's Subpoena may, in general, touch upon issues relevant to this proceeding, and COSCO may have need of some of the documents. Nevertheless, this is outweighed by the overbroad nature of the requests and the lack of particularity. For example, COSCO seeks

documents sufficient to identify “all individuals and other persons” who “are likely” to have information relating to this FMC proceeding (Exhibit A, Documents to be Produced, Item #1 at 7-8)—a request that is inherently speculative, undefined, and limitless in scope. Further, COSCO seeks documents proprietary to SDSA which have no relevance to this proceeding (Exhibit A, Documents to be Produced, Items ##2 and 3 at 8). COSCO seeks documents relating to “potential” contracts, financial or other actions or reviews, none of which involve SDSA (*see, e.g.,* Exhibit A, Documents to be Produced, Items #5(d) at 8-9; #6 at 9; #8 at 9; ##12, 13, 15 and 16 at 10).

Moreover, due to COSCO’s conjoining of multiple, separate corporate entities into one by way of its sweeping definition of “SDS” (Exhibit A, Definition No. 5 at 1), it is impossible to delineate what requests are actually addressed to or are particular to SDSA. SDSA is a separate and distinct U.S. domestic corporation, duly organized under California law with its principal place of business in New Jersey. (Declaration of Iksang Kim, dated October 13, 2025, attached hereto as Exhibit B (“Kim Decl.”), ¶ 4). COSCO should not be allowed to disregard corporate formalities by treating SDSA as interchangeable with or the same as SDS Asia or, for that matter with SDSA’s Republic of Korea parent corporation, Samsung SDS Co., Ltd. (Kim Decl. ¶ 5).³

As the court held in *Power Integrations, Inc. v. Fairchild Semiconductor Int’l, Inc.*, 233 F.R.D. 143, 145-46 (D. Del. 2005), separate corporate identities “are not to be readily disregarded,” and the scope of a subpoena served on one corporate entity cannot be extended to reach a related entity absent clear evidence of control. COSCO has made no such showing here.

³ Notably, in the Subpoena addressed to SDS Asia (a copy of which is attached hereto as Exhibit C), the definition of “SDS” does not expressly include SDSA (Exhibit C, Definition No. 5 at 1).

Its sweeping and undefined document demands disregard both corporate separateness and the narrow limits of permissible non-party discovery.

Accordingly, the subpoena should be quashed as facially overbroad, vague, and unduly burdensome to a non-party.

II. The Subpoena is duplicative of information already in the possession or control of the Parties.

Even setting aside its overbreadth, COSCO's Subpoena should be quashed because the requested relevant documents, to the extent they exist, are or should be within the position, custody, or control of COSCO itself or Third-Party Respondents in this matter. In fact, COSCO has already issued a nearly identical subpoena to Third-Party Respondent Samsung SDS Asia, signed on the same day as the instant Subpoena and is apparently in the process of being served pursuant to the requirements of the Hague Evidence Convention.⁴

Nothing in the instant Subpoena is likely to yield unique or relevant documents or information unavailable from those parties⁵. To the contrary, the only materials uniquely within SDSA's possession concern its own corporate information—documents wholly irrelevant to this proceeding (Exhibit A, Documents to be Produced, Items ##2 and 3 at 8).

Federal courts consistently hold that discovery should not be compelled from a non-party where the information sought is available from a party to the litigation. *See Watts v. Sec. Exchange Comm.*, 482 F. 3d 501, 509 (D.C. Cir. 2007)(quoting *Cusumano v. Microsoft Corp.*, 162 F.3d 708, 717 (1st Cir. 1998)) (“[C]oncern for the unwanted burden thrust upon non-parties is a factor entitled to special weight”); *see also Diamond Serv. Mgmt. Co. v. Knobbe, Martens*,

⁴ Hague Evidence Convention on the Taking of Evidence Abroad in Civil and Commercial Matters, March 18, 1970, 23 U.S.T. 2555, T.I.A.S. No. 7444.

⁵ To illustrate the duplication of requests in the subpoenas directed against SDSA and SDS Asia, attached as Exhibit D is chart listing such duplications.

Olson & Bear, LLP, 339 F.R.D. 334, 339 (D.D.C. 2021)(“Where alternative sources...are ‘more convenient [or] less burdensome,’ those alternatives should be explored first.”)(quoting *In re Subpoena to Jeffrey Goldberg*, 693 F. Supp. 2d 81, 88 (D.D.C. 2010)).

COSCO chose to attempt to drag SDS Asia into this FMC proceeding as a party by way of the Third-Party Complaint. COSCO now appears to be impatient with awaiting discovery from SDS Asia in light of its jurisdictional defense. COSCO apparently believes it is easier to obtain the same discovery from SDSA, a non-party domestic corporation. However, “Expediency is [not] a valid consideration in balancing whether a nonparty should be made to provide documents and communications that are available from a litigant through discovery.” *Peloton Interactive, Inc. v. Flexport Int’l LLC*, FMC Dkt. 24-19, 2025 WL 1424174, *3 (ALJ May 9, 2025). Moreover, COSCO’s attempt to do an end run around the requirements of the Hague Evidence Convention should not be tolerated and thus the Subpoena should be quashed. Such “end runs” around treaty obligations have been expressly rejected by courts. *See Laker Airways Ltd. v. Pan American World Airways*, 607 F. Supp. 324, 326 (S.D.N.Y. 1985)(quashing subpoena served on a party’s non-party U.S. branch office in New York for documents located abroad was a “transparent attempt to circumvent” the Hague Evidence Convention). The same principle applies here: COSCO cannot bypass the procedural safeguards of international discovery by targeting a domestic non-party affiliate.

For these reasons, the Subpoena should be quashed as duplicative and improper.

CONCLUSION

For the above reasons, non-party SDSA respectfully asks that the Subpoena be quashed in its entirety as overbroad, vague, duplicative and unduly burdensome. To the extent that the Presiding Officer declines to grant this Motion to Quash in whole or in part, SDSA reserves the right to file a motion for a protective order pursuant to 46 C.F.R. § 502.141(j) to protect against the public disclosure of any sensitive or confidential information it may be required to produce.

Dated: October 14, 2025

Respectfully submitted,

HOHENSTEIN & PARKINSON, LLP

By: /s/ James H. Hohenstein

James H. Hohenstein

Sheryl K. Parkinson

385 South End Avenue, #5K

New York, NY 10280

Telephone: (917) 873-2528

jim.hohenstein@hplawnyc.com

sheryl.parkinson@hplawnyc.com

Counsel to Samsung SDS America, Inc.

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document as well as the accompanying exhibits by electronic mail upon the following persons/addresses:

1. Office of the Secretary
Federal Maritime Commission
secretary@fmc.gov
2. Hon. Linda S. Harris Crovella – *Administrative Law Judge*
Federal Maritime Commission
Judges@fmc.gov
3. Holland & Knight LLP
Counsel for Complainant
 - a. Christopher R. Nolan
chris.nolan@hklaw.com
 - b. Gerald A. Morrissey III
gerald.morrissey@hklaw.com
 - c. Kristine O. Little
kristine.little@hklaw.com
 - d. Allison N. Skopec
allison.skopec@hklaw.com
4. Jeffrey/Fenneman Law + Strategy, PLLC
Counsel for Respondent and Third-Party Complainant
 - a. Eric C. Jeffrey
EJeffrey@JeffreyFenneman.com
 - b. Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com
 - c. Kaya Massey
KMassey@JeffreyFenneman.com
 - d. Nicholas Webb
NWebb@JeffreyFenneman.com
5. Nixon Peabody LLP
Counsel for Respondent and Third-Party Complainant
 - a. Brian J. Whittaker
bwhittaker@nixonpeabody.com
 - b. Gordon L. Lang
glang@nixonpeabody.com
 - c. Martha A. Medina
mmedina@nixonpeabody.com

Dated: October 14, 2025

By: /s/ James H. Hohenstein

James H. Hohenstein
Hohenstein & Parkinson, LLP